

26STCP00428 26STCP00428

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Case Number: 26STCP00428 Hearing Date: June 23, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JOHN DOE,

Petitioner(s),

vs.

REGENTS

OF THE UNIVERSITY OF CALIFORNIA,

Respondent(s).

Case No.:

26STCP00428 (Lead Case)

26STCP00073

Hearing Date:

June 23, 2026

[TENTATIVE]

ORDER RE: MOTIONS FOR PRELIMINARY INJUNCTION

Petitioner John Doe ("Petitioner") seeks a preliminary injunction restraining respondent Regents of the University of California ("Respondent") from disclosing documents in response to a California Public Records Act ("CPRA") request by real party Cohen Williams, LLP ("RPI").

Likewise, Petitioner Person Doe 1[1] ("PD1") seeks a preliminary injunction restraining Respondent from disclosing documents in response to a similar CPRA request by RPI

Because the legal issues raised by Petitioner's and PD1's motions are substantially similar, the Court issues this combined ruling.

The motions/preliminary injunction are granted.

I.

Background – Petitioner

1.

Factual Background

In June 2016, Petitioner began his employment with the University of California, Los Angeles ("UCLA") School of Dentistry. (Petitioner

Decl., ¶ 2.) Petitioner conducted research and published findings along with his colleagues and his mentor, the Associate Dean for the School of Dentistry (“Associate Dean”). (Petitioner Decl., ¶ 3; Associate Dean Decl., ¶ 4.) From early in Petitioner’s employment, Eric Kang Ting (“Ting”) was Chair of the Orthodontics Section of UCLA’s School of Dentistry. (Petitioner Decl., ¶ 3; Associate Dean Decl., ¶ 4.) Petitioner and the Associate Dean represent that Ting disliked the Associate Dean. (Petitioner Decl., ¶ 3; Associate Dean Decl., ¶ 4.)

In or around January 2018, the UCLA Director of Administrative Policies & Compliance received a whistleblower report regarding unauthorized fees charged to international postgraduate Orthodontics students. (Osher Decl., ¶ 3.) An investigation by Hueston Hennigan, LLP (“Hueston”) determined two students paid \$30,000 annually above the amount paid by other residents, and that money went to a fund established by Ting. (Osher Decl., ¶ 3, Ex. 1 at p. 1.) Hueston concluded Ting and two other professors arranged for these increased fees, representing them to UCLA as donations. (Osher Decl., ¶ 6, Ex. 1 at pp. 1-3.) Ting used the funds to purchase equipment for his lab and his spouse’s lab. (Osher Decl., ¶ 7, Ex. 1 at p. 28.)

In or around August 2018, and also in November 2018, UCLA administration and the U.S. Department of Health and Human Services Office of Research Integrity (“ORI”) received anonymous reports alleging research

misconduct in three publications related to stem cell research, each co-authored by seven to ten of Petitioner's colleagues, including Petitioner and the Associate Dean. (Petitioner Decl., ¶ 4; Associate Dean Decl., ¶ 5.) Hueston's report indicated Ting made these anonymous reports intending to damage the Associate Dean's professional prospects. (Osher Decl., ¶ 7, Ex. 1 at p. 50-56.)

On April 23, 2019, Petitioner received a letter notifying him of the allegations and informing him that an Inquiry Committee would be formed to investigate the allegations. (Petitioner Decl., ¶ 5.) In September 2019, the Inquiry Committee paused its inquiry to provide notice to additional respondents. (Petitioner Decl., ¶ 5.) On February 19, 2020, the Inquiry Committee recommended a formal investigation into six of the seven allegations relating to two of the three publications. (Petitioner Decl., ¶ 6.)

In March 2020, UCLA formed an Investigation Committee to investigate the six allegations, and the ORI assigned a Division of Investigative Oversight number to the case, setting July 24, 2020 as the deadline to complete the investigation. (Petitioner Decl., ¶ 6.) The Investigation Committee conducted one hour-long zoom interview with each respondent and collected evidence from respondents. (Petitioner Decl., ¶ 7.)

The Investigation Committee received several extensions from ORI. (Petitioner

Decl., ¶ 8.) On March 6, 2024, the Investigation Committee issued a Preliminary Investigation Report including findings as to five of the six remaining allegations. (Petitioner Decl., ¶ 8.)

Petitioner submitted a response, raising concerns including a lack of diversity in the composition of the Investigation Committee; lack of expertise in bone biology; failure to review key evidence, including raw data, notebook screenshots and source images; failure to meet with Petitioner to address any questions; and violation of UCLA ethical conduct standards in failing to hold Petitioner to the same standards as other researchers and professors. (Petitioner Decl., ¶ 8.)

On January 9, 2025, UCLA issued its Final Investigation Report. (Petitioner Decl., ¶ 9.) On January 24, 2025, Petitioner was notified that the Final Investigation Report was referred to ORI for review. (Petitioner Decl., ¶ 10.) ORI has not yet concluded its review. (Petitioner Decl., ¶ 11.)

UCLA has not completed its investigation into the allegations against the Associate Dean. (Petitioner Decl., ¶ 12.) As the Associate Dean is a Professor Emeritus and remains a current member of the Academic Senate, and so is entitled to more extensive review and opportunity to present a defense before the Privilege and Tenure Committee ("PTC"). (Petitioner Decl., ¶ 12.) In May 2025, UCLA initiated further

investigation into the Associate Dean. (Associate Dean Decl., ¶ 6.) In December of 2025, the PTC conducted a hearing, where the Associate Dean and Petitioner testified.

(Petitioner Decl., ¶ 13; Associate Dean Decl., ¶ 7.)

Ting published news articles disparaging Petitioner and his colleagues. (Petitioner Decl., ¶ 14, Ex. A; Osher Decl., ¶ 8-9.) In those articles, Ting references the research subject to the ORI investigation.

(Petitioner Decl., ¶ 15; Osher Decl., ¶ 9.)

Ting has made a CPRA request to obtain the investigative findings which are the subject of the Associate Dean's PTC investigation. (Associate Dean Decl., ¶ 10.)

On August 27, 2025, RPI submitted a CPRA request to Respondent for, inter alia, "All records concerning investigation by UCLA into allegations made in or around 2018 that UCLA Dentistry faculty members, professors, and/or associate deans or deans published manipulated data, including all records reflecting any conclusions reached therein." ("Request No. 4") (Osher Decl., ¶ 11, Ex. 2; Williams Decl., ¶ 3.) This request was drafted seeking information about UCLA's investigation into the allegations of academic dishonesty discussed on pages 49 to 56 of Hueston's investigation report. (Williams Decl., ¶ 3.)

On or around January 8, 2026, UCLA's Director of Information

Practices notified Petitioner he was identified as a respondent in a report subject to disclosure under CPRA. (Osher Decl., ¶ 12, Ex. 3) While witnesses and complainants identities would be redacted, UCLA informed Petitioner his name, as the respondent, would be disclosed. (Osher Decl., ¶ Ex. 3.)

On or around January 14, 2026, Petitioner objected to the release of the investigative report on him, arguing that the records were exempt from CPRA disclosure as part of an ongoing investigation, subject to confidentiality under Title 42 of the Code of Federal Regulations, Part 93, exempt from CPRA disclosure as confidential personnel files or similar files, and exempt from CPRA disclosure because the public interest in nondisclosure outweighs the public interest in disclosure. (Osher Decl., ¶ 13, Ex. 4.) Respondent informed Petitioner that the records would be released February 12, 2026 unless Petitioner received a court order to prevent disclosure. (Osher Decl., ¶ 14.)

On January 20, 2026, Respondent informed RPI it was continuing to work on its response to RPI's CPRA requests and had notified certain respondents that a release was pending. (Williams Decl., ¶ 5.) On February 13, 2026, Respondent informed RPI it had decided to release non-exempt records in response to Request No. 4, but also that it had agreed not to release the records until a preliminary injunction could be heard. (Williams Decl., ¶ 6, Ex. 1.)

2.

Procedural History

On February 3, 2026, Petitioner filed a writ action against the Respondent naming RPI as real party. A proof of service filed February 17, 2026 shows Petitioner served RPI with the summons and petition on February 10, 2026. Additionally, a notice of acknowledgment and receipt filed March 19, 2026 shows RPI received the summons and petition. On April 30, 2026, RPI filed its answer to the petition. On May 27, 2026, RPI filed its first amended answer. On June 4, 2026, Respondent filed its answer to the petition.

On April 29, 2026, Petitioner filed the instant motion for a preliminary injunction. On May 8, 2026, Respondent filed a statement of non-opposition. On June 9, 2026, RPI filed its opposition. On June 15, 2026, Petitioner filed its reply.

On May 8, 2026, the parties stipulated to consolidate the hearing on the instant motion with the hearing on a motion for preliminary injunction in related case no. 26STCP00428.

II.

Background – PD1

1.

Factual Background

PD1 joined the UCLA School of Dentistry as an Assistant

Professor. (PD1 Decl., ¶ 3.) At that time, PD1 had no experience or formal

training in molecular biology or animal-based translational research. (PD1

Decl., ¶ 3.) UCLA was aware of PD1's background. (PD1 Decl., ¶ 3.) PD1 had

teaching and administrative responsibilities and was also tasked with

developing an independent research program. (PD1 Decl., ¶ 4.) PD1's research

training was therefore incremental, and PD1 relied on mentorship and

collaboration with senior faculty. (PD1 Decl., ¶ 4.)

PD1 was an orthodontic resident under the Chair of the

Section of Orthodontics at UCLA ("Chair"). (PD1 Decl., ¶ 6.) The Chair

recruited PD1 to join the UCLA faculty and served as a principal research and

career mentor for PD1's early academic career. (PD1 Decl., ¶ 6.) PD1 and his

residents worked in the Chair's lab, used his equipment, and were supported by

his lab personnel. (PD1 Decl., ¶ 7.)

In 2015, PD1 was a witness to a sexual harassment matter

involving the Chair. (PD1 Decl., ¶ 8.) Following PD1's participation as such,

PD1's professional relationship with the Chair deteriorated. (PD1 Decl., ¶ 8.)

UCLA commissioned an investigation by Hueston Hennigan LLP

("Hueston"). (PD1 Decl., ¶ 9.) Hueston concluded the Chair engaged in

retaliatory conduct, including the circulation and use of bad-faith anonymous

allegations of academic misconduct. (PD1 Decl., ¶¶ 9-11; Pet. Ex. 3.)

UCLA formally notified PD1 of sixteen anonymous allegations

of research misconduct against him and more than 30 other people relating to

multiple publications. (PD1 Decl., ¶¶ 12-13.)

More than five years later, PD1 received a Final

Investigation Report from UCLA. (PD1 Decl., ¶ 14.) PD1 submitted a written

response disagreeing with the conclusions. (PD1 Decl., ¶ 14.) UCLA ultimately

made no findings of research misconduct for ten of the sixteen allegations.

(PD1 Decl., ¶ 15.) The publishing journals were notified of the allegations,

conducted their own investigations, and did not issue retractions. (PD1 Decl.,

¶ 17.)

UCLA has not concluded its proceedings as to all accused

individuals, and the federal Office of Research Integrity (“ORI”) is still

conducting a review of PD1’s case. (PD1 Decl., ¶¶ 22-23.)

On August 27, 2025, RPI submitted a CPRA request to

Respondent for, among other things, “[a]ll records concerning investigation by UCLA into

allegations made in or around 2018 that UCLA Dentistry faculty members,

professors, and/or associate deans or deans published manipulated data,

including all records reflecting any conclusions reached therein.” (“Request

No. 4”) (Osher Decl., ¶ 11, Ex. 2; Williams Decl., ¶ 3.) This request was

drafted seeking information about UCLA's investigation into the allegations of academic dishonesty discussed on pages 49 to 56 of Hueston's investigation report. (Williams Decl., ¶ 3.)

On January 20, 2026, Respondent informed RPI that it was continuing to work on its response to RPI's CPRA requests and had notified certain respondents that a release was pending. (Williams Decl., ¶ 5.) On February 13, 2026, Respondent informed RPI that it had decided to release non-exempt records in response to Request No. 4, but it had likewise agreed to not release the records until a preliminary injunction could be heard. (Williams Decl., ¶ 6, Ex. 1.)

2.

Procedural History

On January 1, 2026, PD1 filed a writ action against Respondent, naming RPI as real party. Notices and acknowledgments of receipt filed April 27, 2026, show RPI acknowledged receipt of the summons and petition on March 16, 2026, and Respondent on March 26, 2026. On April 27, 2026, PD1 filed their first amended petition. On May 27, 2026, Respondent and RPI filed their answers.

On April 29, 2026, PD1 filed a motion for a preliminary injunction. On May 8, 2026, Respondent filed a statement of non-opposition. On

June 9, 2026, RPI filed its opposition. On June 15, 2026, PD1 filed a reply.

On May 8, 2026, the parties stipulated to consolidate the

hearing on the instant motion with the hearing on a motion for preliminary

injunction in related case no. 26SMCP00073.

III.

Evidentiary Matters

1.

Requests for Judicial Notice

Petitioner and PD1 both seek judicial notice of the

Department of Health and Human Services ("Department") rules and regulations,

as enacted May 17, 2005, codified as Title 42 of the Code of Federal

Regulations, Parts 50 and 93 (Pet. RJN Ex. 1; PD1 RJN Ex. 1.). The requests are

granted. (Evid. Code § 452(c),)

RPI seeks judicial notice of the following exhibits: (1)

Public Health Service Policies on Research Misconduct, final rule, 70 Fed. Reg.

28,370, May 15, 2005 (RPI RJN Ex. 1); and (2) the Public Health Service

Policies on Research Misconduct, proposed rule, 69 Fed. Reg. 20,778, proposed

April 16, 2004, to be codified at Title 42 of the Code of Federal Regulations,

parts 50, 93 (RPI RJN Ex. 2).[2]

The requests are granted. (Evid. Code § 452(c).)

RPI also seeks judicial notice of Public Health Service

Policies on Research Misconduct, 89 Fed. Reg. 76,280, September 17, 2024, codified

at Title 42 of the Code of Federal Regulations, part 93 (RPI RJN [PD1] Ex. 2).

The request is granted. (Evid. Code § 452(c).)

2.

Evidentiary Objections

Petitioner objects to paragraph 7 of the Williams

Declaration. The objection is sustained for lack of personal knowledge.

IV.

Discussion

In determining whether to issue a preliminary injunction, the

trial court considers two factors: (1) the reasonable probability that the

plaintiff will prevail on the merits at trial (Code Civ. Proc. [“CCP”]

§526(a)(1)), and (2) a balancing of the “irreparable harm” that the plaintiff

is likely to sustain if the injunction is denied as compared to the harm that

the defendant is likely to suffer if the court grants a preliminary injunction.

(CCP §526(a)(2); 14859 Moorpark Homeowner’s Assn. v. VRT Corp. (1998) 63

Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman

(1997) 55 Cal.App.4th 1279, 1283; Davenport v. Blue Cross of California

(1997) 52 Cal.App.4th 435, 446; Abrams v. St. John’s Hospital (1994) 25

Cal.App.4th 628, 636.) Thus, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (Doe v. Wilson (1997) 57 Cal.App.4th 296, 304.)

The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See Scaringe v. J.C.C.

Enterprises, Inc. (1988) 205 Cal.App.3d 1536; Grothe v. Cortlandt Corp.

(1992) 11 Cal.App.4th 1313, 1316; Major v. Miraverde Homeowners Assn.

(1992) 7 Cal.App.4th 618, 623.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (Voorhies v. Greene (1983) 139 Cal.App.3d 989, 995, quoting

United Railroads v. Superior Court (1916) 172 Cal. 80, 87; 14859

Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.)

1.

Probability of Success

"The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction."

(Butt v. State of California (1992) 4 Cal.4th 668, 678. However, "[a]

trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would

ultimately prevail on the merits of the claim.” (Ibid.)

a.

CPRA's Investigatory Exemption

Petitioner contends that the records sought in Request No. 4

are exempt under Government Code^[3]

section 7923.600, subdivision (a), which exempts investigatory or security

files compiled by any state or local agency for correctional, law enforcement,

or licensing purposes. (§7923.600(a).) Petitioner argues that the records are

presently being used in ongoing investigations by both UCLA's PTC and the

federal ORI.

RPI responds that the exemption does not apply because UCLA

prepared the report to investigate research misconduct, not for “correctional,

law enforcement, or licensing purposes.” RPI cites *Uribe v. Howie* (1971)

19 Cal.App.3d 194 for the proposition that a record is exempt only when its

primary purpose relates to those functions. (Opp. at 13.)

RPI's reliance on *Uribe* is misplaced. *Uribe* did

not adopt a rigid “primary purpose only” test. Rather, the court declined to

extend the exemption to all agricultural reports merely because they could,

under some circumstances, be used in disciplinary proceedings. (*Uribe*, *supra*,

19 Cal.App.3d at p. 213.) The court emphasized that the reports in that case

were not primarily prepared for licensing review, and there was no evidence

that any of the reports were being used for such a purpose at the time of

trial. (Ibid.) Critically, Uribe expressly recognized that “if

some reports were currently being used to investigate an applicator, the

reports relating to that applicator would be exempt [...]” (Ibid.)

Here, the record contains undisputed evidence that ORI is

actively reviewing UCLA’s investigation (Petitioner Decl., ¶¶ 10–11), and that

UCLA’s further investigation of the Associate Dean remains pending (Petitioner

Decl., ¶ 12; Associate Dean Decl., ¶¶ 6–7). Thus, the report is both an

investigatory file and one that is currently being used for enforcement review.

The remaining question is whether ORI’s review qualifies as

correctional, law enforcement, or licensing activity. The Court concludes that

it does. If ORI finds research misconduct, it may impose administrative

sanctions, including certification requirements, suspension, or debarment, and

may refer matters for civil or criminal investigation. (42 C.F.R. §§ 93.401,

93.407.) This federal oversight authority is sufficiently law enforcement adjacent

to bring UCLA’s investigative report within the CPRA exemption, because UCLA’s

report is currently being used as part of ORI’s enforcement review.

Accordingly, the Court finds a substantial likelihood that

Petitioner will prevail on the ground that the records fall within section

7923.600(a) and are exempt from disclosure under the CPRA.

The same analysis applies to PD1, who likewise demonstrates, through uncontroverted evidence, that (1) UCLA has not concluded its investigatory process with respect to several accused individuals arising out of the same allegations (PD1 Decl., ¶¶ 22-23), and (2) ORI's oversight review of UCLA's research misconduct findings remains pending (PD1 Decl., ¶ 23). Under Uribe, the investigatory exemption applies not only where the primary purpose of the record is law enforcement or licensing, but also where, as here, the record is presently being used for such purposes. Because UCLA's report is actively under ORI review, and ORI's oversight authority includes potential corrective, compliance, and referral powers, the report is currently being used for law enforcement-adjacent purposes. Accordingly, the Court likewise finds a substantial likelihood that PD1 will prevail under Government Code section 7923.600(a).

b.

42 CFR §93.108 Confidentiality Provision

Petitioner next contends that the sought records are exempt under section 7927.705, which exempts records whose disclosure is exempted or prohibited pursuant to federal or state law. (§ 7927.705.)[4]

Petitioner argues that federal law prohibits disclosure of respondent

identities in research misconduct proceedings, and disclosure of the sought records would necessarily disclose Petitioner's identity. (See 42 CFR § 93.108.)

RPI responds that 42 CFR section 93.108 is merely "aspirational," does not categorically prohibit disclosure, and thus cannot trigger § 7927.705. RPI argues that disclosure is "not always prohibited as a matter of law" under 42 CFR section 93.108, and from that concludes that section 7927.705 can never apply. (Opp. at 16.)[5]

The Court is not persuaded by RPI's interpretation of either section 7927.705 or 42 CFR section 93.108.

Section 7927.705 states:

"Except as provided in Sections 7924.510, 7924.700, and 7929.610, this division does not require disclosure of records, the disclosure of which is exempted or prohibited pursuant to federal or state law, including, but not limited to, provisions of the Evidence Code relating to privilege." (§ 7927.705.)

42 CFR section 93.108 states, in pertinent part:

"Disclosure of the identity of respondents and complainants in research misconduct proceedings is limited, to the extent possible, to those who need to know, consistent with a thorough, competent, objective and fair research misconduct proceeding, and as allowed by law." (42 CFR § 93.108.)

Thus, the regulatory text creates a substantive confidentiality mandate, even if qualified. The phrase “to the extent possible” does not eliminate the prohibition; it directs institutions to maintain confidentiality unless doing so would frustrate a thorough and fair proceeding. RPI presents no evidence that protecting Petitioner’s (or PD1’s) identity is not possible here. UCLA has control over the report and can prevent disclosure entirely pending final review. Moreover, reverse-CPRA analysis does not require an absolute, exception-free federal bar; it requires a showing that disclosure here would violate governing law. On this record, where Petitioner’s and PD1’s identities as respondents would unquestionably be revealed (Osher Decl., ¶¶ 13-14; PD1 Decl., ¶14), the Court finds that 42 CFR section 93.108 prohibits disclosure “to the extent possible.” Here, nondisclosure is possible. Thus, at this stage, Petitioner and PD1 have demonstrated a probability of success on showing that 42 CFR section 93.108 bars disclosure of the report, and, consequently, that section 7927.705 exempts the report from disclosure under CPRA. (42 CFR § 93.108; § 7927.705.)

c.

CPRA’s Personnel Record Exemption

Petitioner argues that the records sought are exempt under

section 7927.700 which exempts personnel, medical, or similar files whose disclosure would constitute an unwarranted invasion of privacy. (§ 7927.700.)[6] Petitioner contends that personnel records generally include records pertaining to grievances against an employee. (Mot. at 14, citing *Associated Chino Teachers v. Chino Valley Unified School Dist.* (2018) 30 Cal.App.5th 530, 539 [“Chino Teachers”], Lab. Code § 1198.5(a).) Petitioner argues that the public interest in the professional competency of a public institution is substantial, but a request for his personnel records significantly implicates his privacy rights. (Opp. at 11, citing *American Federation of State Employees v. Regents of University of California* (1978) 80 Cal.App.3d 913, Bakersfield City School Dist. v. Superior Court (2004) 188 Cal.App.4th 1041, BRV, Inc. v. Sup. Ct. (2006) 143 Cal.App.4th 742, 758.)

In opposition, RPI contends that when a complaint giving rise to a report is “substantial”—that is, if the complaint is upheld or discipline is imposed—then the public interest in disclosure outweighs the privacy interest of the employee. (Opp. at 16, citing *Marken v. Santa Monica-Malibu Unified School District* (2012) 202 Cal.App.4th 1250, 1274-75 [“Marken”].) RPI argues UCLA upheld five of the underlying allegations, and therefore the personnel records exception does not apply. (Opp. at 17.)[7]

The holding in *Marken* is instructive. Under *Marken*,

disclosure of complaints and investigation reports is mandatory where the agency finds the allegations true. (Marken at 1275.) Even if the agency does not uphold the allegations, the agency's report must be released if the agency's file is reliable and, based on that information, the court can determine the complaint is "well founded and substantial." (Ibid.)

RPI is correct. UCLA's Inquiry Committee recommended formal investigation into six of seven allegations and formed an Investigation Committee. (Petitioner Decl., ¶ 6.) The Investigation Committee upheld five of those allegations. (Petitioner Decl., ¶ 8-9.) As the Court does not have UCLA's file or report before it, the Court cannot determine whether the file is reliable or the complaint is well founded and substantial. However, UCLA upheld five of the allegations against Petitioner and made six findings of research misconduct against PD1. (Petitioner Decl., ¶¶ 6-10; PD1 Decl., ¶ 15-16.) While it is unclear whether ORI's potential reversal of the findings would eliminate the effect of UCLA's findings under Marken, the fact that UCLA found against Petitioner and PD1 is a strong indicator that the complaint is well founded and substantial. Therefore, under Marken, the public's interest to disclosure most likely outweighs Petitioner's and PD1's privacy interest.

Accordingly, based on the evidence before this Court, Petitioner and PD1 have not shown at this stage that the report sought under Request No. 4

is likely exempt under section 7927.700.

d.

CPRA's Public Interest Exception

Petitioner contends that the records sought are exempt under section 7922.000 which allows any agency to withhold any record if it demonstrates that the public interest weighs against, rather than for, disclosure.

(§ 7922.000.) The thrust of Petitioner's argument is that (a) Ting will use the disclosure to attempt to improperly influence the pending investigations; and (b) Ting will use the disclosures to take revenge against Petitioner and others. (Mot. at 15.)

These arguments are not persuasive. For the former, Petitioner does not explain how public disclosure of the report will allow Ting to interfere in ORI's review or the PTC's investigation. For the latter, a personal dispute between Ting and his colleagues is a private, not public, interest. The section 7922.000 exception concerns only the public interests in disclosure and nondisclosure. (§ 7922.000.)

Accordingly, Petitioner is not likely to succeed under the theory that CPRA's public interest exception under section 7922.000 does not apply.

e.

Permissive and Prohibitive CPRA Exemptions

RPI argues, in opposition to both motions, that a reverse-CPRA

action can succeed only where an agency is prohibited by law from disclosing

records, rather than merely permitted to withhold them. Even assuming that

standard applies, Petitioner and PD1 have demonstrated a likelihood of success.

As explained above, the records fall within Government Code sections

7923.600(a) and 7927.705, and, significantly, federal law independently bars

disclosure here. Under 42 CFR section 93.108, the identity of respondents in

research misconduct proceedings must not be disclosed “to the extent possible,”

and the record shows that nondisclosure is fully possible in this instance.

Because disclosure would therefore violate federal law, Petitioner and PD1 have

shown a probability of success on the merits.

2.

Balance of Harms

The Court must balance the irreparable harm Petitioner and

PD1 are likely to suffer if an injunction is denied against any harm RPI is

likely to suffer if an injunction is granted. (CCP §526(a)(2); 14859

Moorpark Homeowner's Assn. v. VRT Corp., *supra*, 63 Cal.App.4th at

1402; Pillsbury, Madison & Sutro v. Schectman, *supra*, 55

Cal.App.4th at 1283.) Petitioner and PD1 have demonstrated a significant

privacy interest in the report, which contains UCLA's conclusions regarding the allegations of research misconduct involving both. (*Chino Teachers*, supra, 30 Cal.App.5th at 541.)

RPI identifies no harm it will suffer from delaying disclosure. Its arguments focus solely on the public's eventual right to know how UCLA addressed the allegations, which is a concern that will be fully addressed if RPI ultimately prevails on the merits. The only asserted harm is the risk that the report might never be disclosed, which is not an interim harm relevant to this balancing.

Because Petitioner and PD1 face immediate and irreversible privacy and reputational injury absent an injunction, while RPI identifies no corresponding interim harm, the balance of harms favors Petitioner and PD1.

3.

Bond

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist* (1991) 235 Cal.App.3d 1, 15.) The attorney fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.* at 15-16.) While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting

the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (Oiyev v. Fox, (2012) 211 Cal.App.4th 1036, 1062.)

The parties do not address the issue of bond. The Court will address the issue of bond with counsel at the hearing.

V.

Conclusion

Petitioner and PD1 have shown a probability of success on the merits, and the balance of harms favors Petitioner and PD1. The motions/preliminary injunction are GRANTED.

Date: June 23, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

In the original petition, the named petitioner was "Person Doe." In the first amended petition, petitioner was named "Doe 1".

[2]

RPI seeks judicial notice of this same document in support of its opposition to

PD1's motion. (See RPI RJN [PD1], Ex. 1). The request is granted.

[3]

All further statutory references are to the Government Code unless otherwise stated.

[4]

PD1 and RPI make substantially similar arguments in support of/in opposition to PD1's motion.

[5]

RPI further argues that the correct remedy is redaction, rather than non-disclosure. This may be true, but the parties do not adequately discuss the issue. Moreover, the purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See *Scaringe v. J.C.C. Enterprises, Inc.* (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623.) Determination of the proper remedy is more appropriately considered at the hearing on the merits of the petition.

[6]

Similarly, PD1 argues that they have a substantial privacy interest in the report as part of their personnel file, and that interest would be compromised if the report were disclosed. Mot. at 14, citing *Associated Chino Teachers*

v. Chino Valley Unified School Dist. (2018) 30 Cal.App.5th 530, 541 [“Chino Teachers”].) PD1 therefore also

contends that the report is exempt under section 7927.700.

[7]

RPI makes a substantially similar argument in opposition to PD1’s motion.